

26CMCV00640 26CMCV00640

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-09-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C534%2C09%2F17%2F2026

Source SHA-256: 50dfa5e7ab39859d0f98a1cbd5fad770b1a6a3932dc2883fcf7766f3e6b6e43d

Case Number: 26CMCV00640 Hearing Date: September 17, 2026 Dept: 534

Background

On April 7, 2026, Dorinda Brown and Henderson

Martin filed this action against the City of Gardena and Shawn Washington

arising out of a motor vehicle collision "at or near Vermont Ave & W. 135th St., Gardena, CA 90247." (Compl. ¶ 7.)

Motion

On August 21, 2026, Defendants filed the

instant motion seeking to transfer the action to the Torrance Courthouse in the Southwest District.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion

to Transfer Between Districts

Standard

The

Local Rules of the Superior Court of Los Angeles County govern the assignment of cases between its districts and departments. (Code Civ. Proc. § 402.) SCLAC Local Rule 2.3(b)(2) authorizes the Supervising Judge of the Civil Division to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote

the ends of justice. (SCLAC Local Rule 2.3(b)(2).)

The

Case Was Filed in an Incorrect District

Defendants

seek to transfer this action from the Compton Courthouse in the South Central District to the Torrance Courthouse in the Southwest District. Defendants contend the case was not filed in the correct location based upon the applicable Local Rules.

The

original complaint alleged the collision at issue took place “at or near Vermont Ave & W. 135th St., Gardena, CA 90247.” (Compl. ¶ 7.) Plaintiff, using an outdated version of the Civil Case Cover Sheet Addendum from 2018, listed this address as the basis for the filing location and certified the proper district was the South Central District.

“Every unlimited civil tort action for

bodily injury, wrongful death, or damage to personal property (hereinafter referred to as ‘Personal Injury Action’) must be filed in the judicial district where the incident arose. The filing court locator on the Los Angeles Superior Court website (www.lacourt.org) should be used to determine the appropriate filing location.” (SCLAC Local Rules, rule 2.3(A)(1)(A).) Plaintiffs’

case is a Personal Injury Action and subject to the mandatory filing rules. The filing locator indicates either the Inglewood Courthouse or the Torrance Courthouse in the Southwest District are the appropriate filing locations.

Accordingly,

the case was filed in an incorrect district and the motion is GRANTED, in part.

While

Defendants’ Notice of Motion indicates a preference for the Torrance Courthouse over the Inglewood Courthouse in the Southwest District, the proper filing location is based upon the relevant district, not the individual courthouses within the district.

On

August 26, 2026, Defendants filed a “Supplemental Declaration Re Companion Case” in which they identify a potentially related case pending in Department B of

the Torrance Courthouse. The declaration contends "since there is another matter pending in Department B of the LASC Torrance in this matter, Defendants are requesting transfer be made to that department for all further proceedings." (Supp. Dumont Decl.¶ 4.)

Department 534 shall not designate a courthouse at this time and the case shall be reassigned as though it were properly filed in the first instance.

To the extent Defendants assert there is a related case, they must file a Notice of Related Case pursuant to California Rules of Court, rule 3.300.

Conclusion

Defendants

City of Gardena and Shawn Washington's Motion to Transfer is GRANTED, in part.

All hearings currently set in 26CMCV00640 are hereby advanced and vacated.

Notice of case assignment shall be issued shortly.

Counsel for

Defendants to give notice.